

PLEADINGS COVER SHEET

Caption <i>Passalacqua, Sarah by mng Passalacqua, Nad</i>			
LD# <i>2013-030244</i>		PI/PD# <i>2012PI 015408</i>	
Date rec'd at LD <i>6/24/13</i>	Rec'd in Unit <i>7/1/13</i>	Answer due <i>7/12/13</i>	
Duplicate OAISIS printout YES ☒ NO ☐		NEEDED	
Assigned to <i>Bojanovic</i>			

NOP	NOV	Insurance: Yes No Research Pending To Aff. Lit	
Date of Incident		<i>3/16/12</i>	
Location of Accident <i>Bx</i>		<i>2600 Miles Ave</i>	
Agency <i>056</i>		Case Type <i>021</i>	
Date NOC filed <i>6/11/12</i>		90 th day after d/a is <i>6/14/12</i> Must fill in if under 6 days.	
Was notice of claim served within 90 days of the accident date for <u>each</u> plaintiff?		YES ☒ NO ☐ If NOC not served - do not admit receipt, do not use DX3, or raise an affirmative defense.	
50-h Scheduled date <i>10/22/12</i>		50-h held YES ☒ NO ☐ & Reason	
Date Summons and Complaint filed		<i>6-4-13</i> if no index # or date raise affirmative defense(s).	
Was Summons and complaint filed within 1 year and 90 days (2 years for wrongful death)?		YES ☒ NO ☐ If no, raise GML 50-i 1 yr & 90days after d/a is <i>6/14/13</i> Must fill in if under 6 days.	
Is venue correct?		YES ☒ NO ☐ If no, demand change of venue and mark file.	
S/W cases	Disallowed 7-210 _____ OR Exempt _____ & Reason		
City-owned building or vehicle (circle one)		Verified with: Tel no:	
City employee in caption		YES	NO
Answer for employee		YES	NO (why?)
Was service on employee proper?		YES	NO

Notes:

New York City Law Department
Litigation Report

Matter #:	2013-030244	Matter Name:	PASSALACQUA, SARAH NICOLE BY MNG PASSALACQUA, MADINE, ET AL. VS CITY OF NEW YORK, ET AL.	Wrongful Death:	N
OAISIS #:	2012P1015408	Matter Type:	PI-Officer Action	3rd Party:	N
Subtype:	Active	Unit/Team:	Division: Tort	Lead Matter:	N
Status:	Active	ACC:		Prelim Injunction:	N
Stage:	Litigation	Client Agency:	Part:	Class Action:	N
Opened:	6/25/2013	Description:		Rule 68:	N
Closed:		Lit Start Date:	6/24/2013	Total Disp:	\$0.00
Motions:	0 Motions	App Docket #:		City Pay:	\$0.00
		App Court:		City Recv:	\$0.00
		Appeals ACC:		Aff Lit Involved:	N

Event Type	Group	Start	Status	Description	Date Added	Added By	Assigned
	Start Matter	Tue 6/25/2013 5:11 PM	Completed	Start Matter	6/25/2013 5:12 PM	sbrowne	
	Summons & Complaint	Mon 6/24/2013 3:15 PM	Received-	2 Summons & Complaint	6/25/2013 5:18 PM	sbrowne	
	Pleadings		Personal Service				

Report Complete. Number of main records listed: 1

Report run on 6/27/2013

By: jfarrell

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.: 350160-2013
Filed On: June 14, 2013

-----X
 SARAH NICOLE PASSALACQUA, an Infant under
 the age of eighteen (18) by her Mother and Natural
 Guardian, NADINE PASSALACQUA,
 NADINE PASSALACQUA, Individually,
 GREGORY PASSALACQUA, CHRISTIAN
 PASSALACQUA and JULIAN PASSALACQUA,

Plaintiffs,

-against-

THE CITY OF NEW YORK and NEW YORK
 CITY, POLICE DEPARTMENT, POLICE OFFICER
 CARLOS MARTINEZ, SERGEANT DENNIS
 TIERNEY and JOHN DOES AND JANE DOES
 - Police Officers as yet unidentified,

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
 a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
 appearance on the Plaintiffs' Attorney(s) within 20 days after the service of this summons,
 exclusive of the day of service (or within 30 days after the service is complete if this summons is
 not personally delivered to you within the State of New York); and in case your failure to appear
 or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Bronx, New York
June 13, 2013DUBOW, SMITH & MAROTHY
Attorneys for Plaintiffs

SARAH NICOLE PASSALACQUA, an Infant
 under the age of eighteen (18) by her Mother
 and Natural Guardian, NADINE PASSALACQUA,
 NADINE PASSALACQUA, Individually,
 GREGORY PASSALACQUA, CHRISTIAN
 PASSALACQUA and JULIAN PASSALACQUA
 Office and Post Office Address
 860 Grand Concourse, Suite 1N
 Bronx, New York 10451
 (718) 402-1990

DEFENDANTS' ADDRESSES

THE CITY OF NEW YORK
 100 Church Street
 New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
 100 Church Street
 New York, New York 10007

POLICE OFFICER CARLOS MARTINEZ
 c/o New York City Police Department
 45th Precinct
 2877 Barkley Avenue
 Bronx, New York 10465

SERGEANT DENNIS TIERNEY
 c/o New York City Police Department
 45th Precinct
 2877 Barkley Avenue
 Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SARAH NICOLE PASSALACQUA, an Infant under
the age of eighteen (18) by her Mother and Natural
Guardian, NADINE PASSALACQUA,
NADINE PASSALACQUA, Individually,
GREGORY PASSALACQUA,
CHRISTIAN PASSALACQUA and
JULIAN PASSALACQUA,

Index No.: 350160-2013

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER CARLOS MARTINEZ, SERGEANT
DENNIS TIERNEY and JOHN DOES AND
JANE DOES - Police Officers as yet unidentified,

Defendants.
-----X

Plaintiffs, by their attorneys **DUBOW, SMITH & MAROTHY**, as and for their Complaint
respectfully alleges, upon information and belief:

1. The plaintiffs, at all times herein mentioned were and still are residents of the
County of Bronx, City and State of New York.

2. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW
YORK, hereinafter referred to as "CITY", was and still is a municipal corporation, duly organized
and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned, the defendant, CITY, was and still is a
domestic corporation duly organized and existing under and by the virtue of the laws of the
State of New York.

4. That the defendant, CITY, maintains a police force known of the NEW YORK CITY
POLICE DEPARTMENT.

5. That at all the times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYCPD", was and still is a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, the defendant, NYCPD was and is an agency of the defendant, CITY.

7. That on June 11, 2012, the plaintiffs duly served and filed with the Legal Department of the defendant, CITY, verified Notices of Claim and intent to sue, setting forth the name and post office address of the claimants and their attorneys; the nature of the claims, the time when, and the place where and the manner in which the claims arose, as well as the items of damages and injuries.

8. That said Notices of Claim and intention to sue were served within ninety (90) days after the claims arose and that this action is commenced with one (1) year and ninety (90) days of the happening of the event upon which the claims are based.

9. That more than thirty (30) days have elapsed since the demands for claims upon which this action was founded, were presented to the Legal Department of the defendant CITY, for adjustment and that the defendant, CITY, has neglected and refused to make adjustment or payment thereof for said period of thirty (30) days after such presentation, and that this action is commenced within one (1) year after the causes of action accrued.

10. Pursuant to the General Municipal Law, the Statutory 50-h hearing of the plaintiffs were held on October 22, 2012 and February 15, 2013.

11. That on and prior to March 16, 2012, and at all the times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, as agents, servants and/or employees were police officers employed by the defendant, NYCPD, and at all times herein were acting in such capacity as the agents, servants and employees of the defendants CITY and NYCPD.

12. That on and prior to March 16, 2012, and at all the times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, as agents, servants and/or employees were on acting in such capacity as the agents, servant and employee of the defendants CITY and NYCPD.

13. That on March 12, 2012 at approximately 8:15 p.m., Defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were on duty and acting with in the scope of their employment and under the direction of the defendants CITY and NYCPD as its agents, servants and/or employees.

14. That on and prior to March 12, 2012, Defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES and JANE DOES - Police Officers as yet unidentified, were each hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the defendants CITY and NYCPD.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
ASSAULT AND BATTERY FOR OF JULIAN PASSALACQUA**

15. The plaintiff's repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That on March 12, 2012, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JULIAN PASSALACQUA, was lawfully present at the premises located at 2600 Miles Avenue, Bronx, New York.

17. That on March 16, 2012, and at all times hereinafter mentioned and upon information and belief, the plaintiff JULIAN PASSALACQUA was assaulted by defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES - Police Officers as yet unidentified, while acting as agents, servants and/or employees of the defendants CITY and NYCPD.

18. That on March 16, 2012, and at all times hereinafter mentioned and upon information and belief, assault and battery was performed knowingly, intentionally and willfully.

19. That on March 16, 2012, and at all times hereinafter mentioned and upon information and belief, defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JULIAN PASSALACQUA, were acting within the scope of their employment with the defendants CITY and NYCPD.

20. That on March 16, 2012, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff, JULIAN PASSALACQUA, was without probable cause and was not the result of an appropriate arrest.

21. By reason of said assault and battery, the plaintiff was cause to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

22. By the reason of the foregoing, the plaintiff, JULIAN PASSALACQUA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF JULIAN PASSALACQUA**

23. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. The defendants CITY, NCYPD, JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, JULIAN PASSALACQUA.

25. As the result of said negligence, the plaintiff, JULIAN PASSALACQUA, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

26. By the reason of the foregoing, the plaintiff, JULIAN PASSALACQUA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION ON BEHALF
OF JULIAN PASSALACQUA**

27. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. Defendants CITY and NYCPD, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, who assaulted, battered and falsely arrested and violated the civil rights of the plaintiff, JULIAN PASSALACQUA.

29. That the defendants, CITY and NYCPD, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, and continued to employ them and allow them to be in contact with the public at large.

30. By the reason of the foregoing, the plaintiff, JULIAN PASSALACQUA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF JULIAN PASSALACQUA**

31. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. Defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, JULIAN PASSALACQUA, in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

33. Defendants have deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

34. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42. U.S.C.A. Section 1983 as well as other applicable state and federal laws.

35. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were acting under color of law and within their authority as law enforcement officers within the employ of defendants, NYCPD.

36. That the defendants' actions were not privileged or immune.

37. That defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

38. By the reason of the foregoing, the plaintiff, JULIAN PASSALACQUA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE ARREST
ON BEHALF SARAH PASSALACQUA, AN INFANT UNDER THE
AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL
GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA,
INDIVIDUALLY AND CHRISTIAN PASSALACQUA**

39. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at length herein.

40. That on March 16, 2012, and at all times hereinafter mentioned and upon information and belief, the plaintiffs were lawfully at or about the premises located at 2600 Miles Avenue, Bronx, New York.

41. That on March 16, 2012, and at all the times hereinafter mentioned and upon information and belief, the plaintiffs were wrongfully, unlawfully and unjustifiably arrested, detained and deprived of their liberty against their will, and were imprisoned by defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, with the authority of CITY and NYCPD.

42. That on March 16, 2012, and at all the times hereinafter mentioned and upon information and belief, the defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were working within their scope of employment and authority with defendants CITY and NYCPD, recklessly broke in and falsely arrested and imprisoned the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA. The Police Officers pointed guns at the plaintiffs and destroyed the garage door, front entrance door, screen door dresser and home.

43. That on March 16, 2012, and at all the times hereinafter mentioned and upon information and belief, the defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were working within their scope of employment and authority with defendants CITY and NYCPD, when they arrested and imprisoned the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA.

44. That on March 16, 2012, and at all times herein after mentioned and upon information and belief, the arrests and imprisonment were without probable cause nor based on reasonable grounds and not founded upon arrest warrants of the plaintiffs.

45. That as a result of the aforesaid false arrest and confinement, Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

46. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENCE HIRING AND RETENTION ON BEHALF
OF ON BEHALF SARAH PASSALACQUA, AN INFANT
UNDER THE AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL
GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA,
INDIVIDUALLY AND CHRISTIAN PASSALACQUA**

47. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. Defendants CITY and NYCPD, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, who falsely arrested and violated the civil rights of the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA.

49. That the defendants, CITY and NYCPD, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, and continued to employ them and allow them to be in contact with the public at large.

50. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF SARAH PASSALACQUA, AN INFANT UNDER THE AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA, INDIVIDUALLY AND CHRISTIAN PASSALACQUA

51. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. That on March 12, 2012, and at all times hereinafter mentioned and upon information and belief, defendants, CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, within the scope of their employment, maliciously prosecuted the plaintiffs.

53. That as a result of the aforesaid false arrest and confinement, Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA, sustained serious permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment opportunities and suffered emotional and physical distress and injuries.

54. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, and CHRISTIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON BEHALF SARAH PASSALACQUA, AN INFANT UNDER THE AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA, INDIVIDUALLY, GREGORY PASSALACQUA, CHRISTIAN PASSALACQUA AND JULIAN PASSALACQUA

55. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "54" inclusive with the same force and effect as if more fully set forth at length herein.

56. The defendants, CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiffs through their actions.

57. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiffs.

58. That as a result of said intentional and negligent acts, the plaintiffs, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of their person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and were otherwise injured.

59. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, GREGORY PASSALACQUA, CHRISTIAN PASSALACQUA and JULIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF SARAH PASSALACQUA, AN INFANT UNDER THE AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA, INDIVIDUALLY, and CHRISTIAN PASSALACQUA

60. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That on March 16, 2012, defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, did search and seize without a court authorized search warrant and grabbed the plaintiffs during the arrest process in an unlawful and excessive manner.

grabbed the plaintiffs during the arrest process in an unlawful and excessive manner.

62. Defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, displayed deliberate indifference to the plaintiffs rights to be free from unreasonable searched and seizures and excessive use of force.

63. Defendants have deprived the plaintiffs by their actions of their civil rights as guaranteed by statue.

64. That the deprivation by the defendants of plaintiffs' civil rights were a result of said defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were acting under color of law, to wit: the statutes, ordinances, rules and regulations, policies and customs and usage of the State of New York and/or City of New York.

65. That the defendants' actions were not privileged or immune.

66. That defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiffs' of their civil rights.

67. That defendants CITY, NYCPD, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, were acting intentionally, maliciously, with reckless disregard for and deliberate indifference to plaintiffs' rights and physical well being.

68. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, GREGORY PASSALACQUA, and CHRISTIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
ON BEHALF SARAH PASSALACQUA, AN INFANT UNDER THE
AGE OF EIGHTEEN (18) BY HER MOTHER AND NATURAL
GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA,
INDIVIDUALLY, CHRISTIAN PASSALACQUA and JULIAN PASSALACQUA**

69. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "68" inclusive with the same force and effect as if more fully set forth at length herein.

70. The actions of the defendants herein above alleged, were malicious, willful and grossly negligent.

71. Defendants, CITY and NYCPD, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified.

72. By reason of the foregoing, the Infant plaintiff, SARAH NICOLE PASSALACQUA, and plaintiffs NADINE PASSALACQUA, CHRISTIAN PASSALACQUA and JULIAN PASSALACQUA sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR PROPERTY DAMAGES
ON BEHALF GREGORY PASSALACQUA and JULIAN PASSALACQUA**

73. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "72" inclusive with the same force and effect as if more fully set forth at length herein.

74. That on March 12, 2012, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, forced into the home of the plaintiffs destroying the garage door, front entrance door and frame, screen door, Platform bed, dresser, and putting holes in the walls, causing the plaintiff, GREGORY PASSALACQUA to incur property damage in the amount of FOUR THOUSAND SIX HUNDRED DOLLARS (\$4,600.00).

75. That on March 12, 2012, POLICE OFFICER CARLOS MARTINEZ, SERGEANT DENNIS TIERNEY and JOHN DOES AND JANE DOES - Police Officers as yet unidentified, forced into the home of the plaintiff JULIAN PASSALACQUA, seizing his locked safe box and destroying the safe box and its contents, causing the plaintiff, JULIAN PASSALACQUA to incur property damage in the amount of EIGHT HUNDRED DOLLARS (\$800.00).

WHEREFORE, the plaintiff JULIAN PASSALACQUA demand judgment both compensatory and exemplary against the defendants which exceeds the jurisdictional limits of all lower courts, on the **FIRST, SECOND, THIRD, FOURTH and TENTH CAUSES OF ACTION**; the plaintiff JULIAN PASSALACQUA demand judgment both compensatory and exemplary against the defendants which exceeds the jurisdictional limits of all lower courts, on the **ELEVENTH CAUSE OF ACTION**, the return of and interest of the \$800.00 dollars illegally seized; the plaintiffs SARAH PASSALACQUA, AN INFANT UNDER THE AGE OF **EIGHTEEN (18) BY HER MOTHER AND NATURAL GUARDIAN, NADINE PASSALACQUA, NADINE PASSALACQUA, INDIVIDUALLY, and CHRISTIAN PASSALACQUA** demand judgment both compensatory and exemplary against the defendants which exceeds the jurisdictional limits of all lower courts, on the **FIFTH, SIXTH, SEVENTH, EIGHTH, NINTH and TENTH CAUSES OF ACTION**; and the plaintiff GREGORY PASSALACQUA demand judgment both compensatory and exemplary against the defendants which exceeds the jurisdictional limits of all lower courts, on the **EIGHTH and ELEVENTH CAUSES OF ACTION** which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, together with the costs, attorney's fee and disbursements of this action.

Dated: Bronx, New York
June 13, 2013

Yours, etc.

DUBOW, SMITH & MAROTHY


CHRISTOPHER A. MAROTHY, ESQ.

Attorney for Plaintiffs

**SARAH NICOLE PASSALACQUA, an Infant
under the age of eighteen (18) by her Mother
and Natural NADINE PASSALACQUA,
NADINE PASSALACQUA, GREGORY
PASSALACQUA, CHRISTIAN PASSALACQUA
and JULIAN PASSALACQUA
860 Grand Concourse, Suite 1N
Bronx, New York 10451
(718) 402-1990**

CERTIFICATION

The foregoing **SUMMONS AND COMPLAINT** is hereby certified pursuant to Section 130-1.1-a of the Rules of the Chief Administrator (22NYCRR).

Dated: Bronx, New York
June 13, 2013


CHRISTOPHER A. MAROTHY, ESQ.

FILED: BRONX COUNTY CLERK 01/16/2024 11:46 PM

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